

Supplementary Criminal Referral — Perverting the Course of Justice

Four-Level Mechanism of Deception — Paragraph 64 of DH v RH (No 3)
[2024] EWFC 79 — CCR-6501-26-0100-000

Case references

BV20D01752 | CA-2024-001342 | AC-2025-LON-004293 | BL-2024-001217

Nadia Zahmoul

Litigant in Person

22 May 2026

Veritas Numquam Perit

Claimant	Nadia Zahmoul — Litigant in Person			
CCR	CCR-6501-26-0100-000 — MPS — supplementary submission 22 May 2026			
Proceedings	BV20D01752 (Family) \	CA-2024-001342 (Court of Appeal) \	AC-2025-LON-004293 (Judicial Review) \	BL-2024-001217 (Chancery)
Legal authority	Common law offence of perverting the course of justice — <i>R v Selvage</i> [1982] QB 372 — <i>R v Rowell</i> [1978] 1 WLR 132 — Sentencing Council Guidelines (1 October 2023)			
Addressee	Commissioner Sir Mark Rowley QPM, Metropolitan Police Service			
Date	22 May 2026			

PART 1 — THE OFFENCE

Perverting the course of justice is a common-law offence triable only on indictment in the Crown Court. The elements are: (a) a positive act or series of acts (omission is insufficient); (b) the act has a tendency to pervert the course of justice; (c) the act is done with that intention.

The authorities establish that:

- The offence is engaged where pending or imminent civil or criminal proceedings or investigations are affected (*R v Selvage* [1982] QB 372). The offence applies to civil proceedings as well as criminal proceedings.
- The Crown need only prove the act had tendency and intent, not that the perversion was successful (*R v Rowell* [1978] 1 WLR 132).

- The Sentencing Council Guidelines of 1 October 2023 confirm that the actus reus of the offence includes "concealing evidence" and "fabricating evidence" as classic examples.
- Professionals — including legal professionals and officers of the court — have no immunity from prosecution for perverting the course of justice (*Briscoe*, 2014, sixteen months' imprisonment of a serving part-time judge for conduct outside the judicial function).

The Applicant's case under this submission concerns four discrete acts which together establish the four-level mechanism of deception set out below. Each level is a positive act. Each has tendency to pervert. Each is documentarily anchored. Contemporaneous knowledge is established on the documentary record for each level.

PART 2 — THE FOUR-LEVEL MECHANISM OF DECEPTION

The mechanism operates at four discrete levels. Each level is an independent positive act capable of supporting a perverting-the-course-of-justice analysis. Together they form a recurring four-level mechanism capable of tending to pervert the course of justice.

Level	Act	Actus reus
(a) Suppression	Suppression from the judicial record of evidence that exists on the contemporaneous court record.	Concealing material evidence from the appellate and public legal record.
(b) Fabrication	Assertion of findings not traceable to identifiable evidential source material — assertion of facts in a judgment for which no source exists in any of the three primary evidence categories (oral evidence, written evidence in the bundle, submissions).	Introducing unsupported factual characterisations into the judicial record.
(c) Formal finding	Making a formal judicial finding based on the unsupported characterisation, with contemporaneous knowledge that the asserted characterisation has no foundation in the source categories.	Converting unsupported characterisation into a binding judicial determination.
(d) Publication	Publishing the judgment containing the unsupported finding in the National Archives. Publication is continuing: each day the judgment remains accessible is a day on which the unsupported content is disseminated as authoritative	Disseminating unsupported content as authoritative judicial record.

	judicial fact.	
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The four levels are mutually supporting. The suppression at Level (a) is the precondition for the unsupported characterisation at Level (b) to be sustainable. The unsupported characterisation at Level (b) is the precondition for the formal finding at Level (c). The formal finding at Level (c) is the precondition for the publication at Level (d). The publication at Level (d) closes the system: the unsupported content is now disseminated as judicial fact, and the appellate routes to remove it have been refused on the procedural ground that the trial judge was not required to refer to the suppressed evidence.

PART 3 — WORKED ILLUSTRATION: PARAGRAPH 64 OF THE 18 APRIL 2024 JUDGMENT

This Part illustrates the four-level mechanism using one example: paragraph 64 of the judgment of Mr Justice MacDonald in *DH v RH (No 3)* [2024] EWFC 79, handed down on 18 April 2024 in the Family Division of the High Court. The same analytical framework is capable of application across several of the eight judgments analysed in Statement A of even date.

Level (a) — Suppression of evidence

The trial transcript of the ten-day final hearing (19–28 February 2024) records **twenty-five (25)** discrete oral references to autism and PTSD during witness evidence. These references come from multiple sources: opposing counsel asking disability-related questions during cross-examination; the Applicant's counsel raising the disability nexus in opening submissions; the husband acknowledging the Applicant's PTSD in his own oral evidence; and the trial judge himself.

The trial judge himself made **thirteen (13)** references to autism and PTSD during witness evidence. He asked on the open record: "*Did you say Nadia had PTSD?*" (attendance notes, line 2897). He confirmed at line 1986: "*I have read everything in the bundle.*" The bundle contained Professor Libby's PTSD letter of 12 July 2022, exhibited to the husband's own trial statement.

The 111-paragraph trial judgment of 18 April 2024 contains **zero** references to autism, PTSD, disability, vulnerability, FPR Part 3A, or participation measures across all of its 19,620 words.

Part 3A participation measures were in force throughout the trial. They ceased on 28 February 2024 with no court order, no recorded reasons, and no identifiable judicial act. The judgment does not refer to the measures or to their cessation.

The references are documented in the A1 Catalogue of In-Trial References (11 May 2026) on the criminal referral file. The Master Index v7 (15 March 2026, 379 records) catalogues the wider pattern of which this suppression is part.

Level (b) — Assertion of findings not traceable to identifiable source material

The 111-paragraph trial judgment contains one paragraph that addresses the Applicant's presentation in the witness box. Paragraph 64 records the trial judge's finding that the Applicant's presentation "*bordered on the concerning*" and that the Applicant had "*become obsessed*" on the disclosure issue.

The trial transcript contains no evidential foundation for an "*obsession*" finding. The issue of allegedly hidden assets was put to the Applicant once in cross-examination. She answered in approximately a single line. Counsel did not press the point further. There is no documented basis in the transcript, in the bundle, or in any of counsel's submissions for an "*obsession*" characterisation.

The Para 64 finding therefore asserts a characterisation — the existence of an obsession; the presentation as concerning — which is not traceable to any identifiable source within the three primary evidence categories. The asserted characterisation is not in the transcript. It is not in the bundle. It is not in counsel's submissions.

Level (c) — Formal finding based on the unsupported characterisation, with contemporaneous knowledge

Paragraph 64 is not a working draft. It is a formal judicial finding made in a judgment handed down. It is the operative analytical premise for the **£800,000** add-back imposed by the same judgment for "*reckless expenditure on legal costs*" (Para 83).

The Costs Judgment of 24 May 2024 (*DH v RH (No 4)* [2024] EWFC 114) at paragraph 19 carries the same framing forward: "*the fact that the court has added back assets dissipated by a party through an obsessive approach to litigation.*" The Costs Judgment imposes a further **£255,654.50** in indemnity costs.

The total financial consequence of the Para 64 "*obsession*" framing across the two judgments is **£1,055,654.50**.

Contemporaneous knowledge that the asserted facts had no foundation in the source categories is established on the documentary record:

- The trial judge made thirteen (13) references to autism and PTSD during witness evidence. The disability evidence was not unknown to him.
- The trial judge asked on the open record "*Did you say Nadia had PTSD?*" (line 2897). The PTSD diagnosis was explicit on the trial record.
- The trial judge confirmed at line 1986 that he had read everything in the bundle. The bundle contained Professor Libby's PTSD letter of 12 July 2022.
- The cross-examination on disclosure was one question; the answer was approximately one line; the trial judge was personally present. The absence of evidential foundation for the "*obsession*" finding was therefore not unknown to him either.

The contemporaneous record strongly indicates awareness of both the disability evidence and the absence of identifiable evidential foundation for the "*obsession*" characterisation.

Level (d) — Publication in the National Archives

The 18 April 2024 judgment is published in the National Archives at *DH v RH (No 3)* [2024] EWFC 79. The 24 May 2024 Costs Judgment is published at *DH v RH (No 4)* [2024] EWFC 114. Both judgments remain accessible. Both are citable as authoritative judicial decisions. Both contain the unsupported content set out at Levels (b) and (c).

Publication is continuing. Each day the judgments remain published is a day on which the unsupported content continues to be disseminated as judicially established fact. The Applicant's formal request for the National Archives to revoke publication, made on 26 June 2025, has not been actioned. The Applicant's appellate routes to challenge the publication have been refused on the procedural ground that the trial judge was not required to refer to the suppressed evidence (Moylan LJ, 23 December 2024; King LJ, 4 August 2025).

PART 4 — POSITION ON JUDICIAL IMMUNITY

The Applicant is aware that judicial immunity protects judges of superior courts from civil liability for acts done within the judicial function (*Anderson v Gorrie* [1895] 1 QB 668). The Applicant's submission does not engage that doctrine. The Applicant's position is that the acts identified at Part 3 are distinguishable from ordinary judicial evaluation or discretionary reasoning. The principle that judicial office does not confer immunity from criminal liability for acts performed outside the judicial function is established in authorities including *R v Briscoe* (2014).

The orthodox UK position is that judges face criminal liability like ordinary citizens for criminal acts. The acts identified at Part 3 are not characterised by the Applicant as judicial evaluations of evidence (which would be appealable). They are characterised as positive acts of suppression, assertion of unsupported characterisations, formal finding based on those characterisations, and publication. Whether those acts fall outside the judicial function in this case is a matter for the investigator.

PART 5 — CROSS-REFERENCES

The full evidentiary base for this supplementary submission is on the criminal referral file:

- **Statement A — Suppression of Disability Evidence Across Eight Orders** (22 May 2026, public record). The horizontal analysis across the eight judgments handed down between 18 April 2024 and 7 May 2026. Sets out the structural pattern in full.
- **Master Index v7 — 20 Most Compelling Misconduct in Public Office Records** (15 March 2026). The 379-record evidentiary catalogue from which the 20 most compelling records are tabulated for law enforcement analysis.

- **Order Analysis No. 1 — DH v RH (No 3)** [2024] EWFC 79** (15 March 2026). Forensic depth on the 18 April 2024 trial judgment including Para 64.
- **Order Analysis No. 2 — DH v RH (No 4)** [2024] EWFC 114** (15 March 2026). Forensic depth on the 24 May 2024 Costs Judgment.
- **Permission to Appeal application of 22 July 2024** filed at the Court of Appeal. The Applicant's contemporaneous formulation of the four-level mechanism, on the formal court record for nearly two years.
- **Formal Position Statement of 9 April 2026** submitted to the Justice Committee of the House of Commons as written evidence.
- **Medical Evidence Index v2** (22 May 2026). NHS clinical record NZ-001 to NZ-014.

PART 6 — FORTHCOMING SUBMISSIONS

The same analytical framework is capable of application across several of the judgments analysed in Statement A. The Applicant has identified further examples which will be addressed in forthcoming submissions under this reference. These will include the application of the four-level mechanism to:

- The 24 May 2024 Costs Judgment (twelve findings of misconduct at paragraph 10, including the "*stole confidential financial information*" finding contradicted by eight items in the bundle, and the "*disruptive*" courtroom conduct finding not recorded in the attendance notes).
- The 8 May 2025 set-aside judgment (Dr Poyser's clinical evidence quoted and walked away from; "*deliberately obstructive*" finding).
- The 11 March 2026 Judicial Review refusal (the substitution of pleaded administrative grounds with a different characterisation, on which the refusal proceeds).

Each will be cross-referenced to the underlying evidentiary base on file. The submissions will not be exhaustive of the pattern; they will identify the most compelling examples within it.

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